



Notification Waiver Determination

Waymark Hotels Group – Howard Springs Tavern, Howard Springs, NT

Acquisition	Howard Springs Op Co Pty Ltd and Waymark Hotels Properties No 43 Pty Ltd (as trustee for the Howard Springs Property Trust) (the Acquirers) applied for a notification waiver in respect of their proposed acquisition of the land and business of the Howard Springs Tavern in Howard Springs, Northern Territory (the Howard Springs Tavern), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	18 August 2026

Parties to the Acquisition	The Acquirers are part of the Waymark Hotels Group (Waymark), which owns and operates hotels (pubs) and takeaway liquor retailing (bottle shops) in regional Queensland and the Northern Territory. The Waymark Hotels Group is part of the Vinta Group, a private real estate group. The target, Howard Springs Tavern, is a commercial hotel business in Howard Springs, Northern Territory (approximately 29km south-east of Darwin), which offers dining, gaming machines and liquor retailing, both in-store and via a drive-through bottle shop.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. there is no horizontal overlap between Waymark and Howard Springs Tavern in the supply of on-premises and takeaway packaged liquor, dining, gaming and accommodation services in Howard Springs, Greater Darwin or the surrounding local areas b. there are alternative suppliers of on-premises and takeaway packaged liquor, dining, gaming and accommodation services in Howard Springs, Greater Darwin or the surrounding local areas.

	In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act